

Judgment Sheet
LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

Criminal Appeal No.35879 of 2025
(Nadeem Liaqat Vs. The State, etc.)

JUDGMENT

Date of hearing: 23.07.2025

Appellant by: M/S Zubair Ahmad Kundi, Raja Asif and Uzma Asad, Advocates.
State by: Ch. Muhammad Ishaq Additional Prosecutor General.
Complainant by: M/S Muhammad Faisal Rafique and Raza Subhani, Advocates.

Abher Gul Khan, J. This appeal has been filed under Section 8-A of the Illegal Dispossession Act, 2005 (hereinafter referred to as “**the Act of 2005**”) by Nadeem Liaqat (appellant), challenging the *vires* of judgment dated 04.06.2025, whereby learned Additional Sessions Judge, Lahore, upon conclusion of the trial in a complaint under Sections 3 & 4 of the Act of 2005 titled as **Muhammad Mehdi Khan v. Maqsood Ahmad Gujjar DSP & 3 others** found the appellant guilty and convicted him as under:-

“**Under 3 of the Act of 2005** to suffer simple imprisonment for two years with fine of Rs.50,000/- and in default whereof to further undergo four months SI. He was also directed to pay compensation of Rs.2,00,000/- under Section 544-A Cr.P.C. and in case of its default, the appellant was directed to further suffer four months SI.”

2. Briefly, the case of the prosecution as set forth by the complainant, Muhammad Mehdi Khan (PW.1) in complaint, is that he entered into an agreement to sell dated 05.11.2018 with Mst.Asmat Zahra in respect of a house measuring 08 Marlas, bearing Khewat No. 2948, Khatooni No. 3990, Khasra

Nos.47063 and 47065, situated within the territorial limits of Hadbast Mouza Shahdara, Lahore (hereinafter referred to as “**the Property**”). In pursuance of said agreement, he paid a sale consideration of Rs.26,00,000/- to Mst.Asmat Zahra, whereupon she handed over possession of the Property to him but Mst. Asmat Zahra failed to execute and register a formal sale deed in favour of the complainant. Left with no alternative, Muhammad Mehdi Khan (PW.1) instituted a civil suit for specific performance on the basis of the agreement to sell. Subsequently, Nadeem Liaqat (appellant), along with his co-accused, made repeated attempts on various occasions to dispossess the complainant from the Property, but remained unsuccessful in their efforts. The situation, however, escalated on 23.06.2023, when the appellant, allegedly aided by certain police officials, forcibly entered into the Property and unlawfully took possession of it by mounting an aggressive attack.

3. Upon receipt of the complaint, learned Additional Sessions Judge, Lahore proceeded to record the cursory statements of the complainant and his witnesses, who appeared as court witnesses (CW.1 to CW.6). In compliance with the procedural requirements embodied in Section 5 of the Act of 2005, the learned trial court also requisitioned reports from the concerned SHO and the revenue officer to ascertain the factual position regarding possession and ownership of the Property. After examining the preliminary material and applying judicial mind, the learned trial court, *vide* order dated 27.09.2024, found sufficient grounds to summon Nadeem Liaqat (appellant), to face trial. However, the complaint, to the extent of Maqsood Ahmad Gujjar DSP, Yasir Abbas SHO, Basharat Ali accused, was dismissed. During trial the prosecution, in order to

substantiate its case against the appellant, produced four witnesses. The complainant, Muhammad Mehdi Khan, appeared as PW.1 and reiterated the allegations contained in the complaint. In addition, Ghulam Rasool (PW.2), Muhammad Azeem (PW.3), and Shafaqat Ghouri (PW.4) provided ocular account in support of the complainant's version, allegedly witnessing the forcible dispossession. Upon the conclusion of prosecution evidence, the learned trial court recorded the statement of the appellant under Section 342, Cr.P.C. In his statement, the appellant denied all the allegations levelled against him and claimed that the Property was actually owned by his mother and that he had been falsely implicated in the case due to ulterior motives. However, the appellant neither opted to appear as a witness in his own defence under Section 340(2) Cr.P.C., nor did he produce any documentary or oral evidence in support of his claim. After evaluating the entire evidence on record and hearing the arguments from both sides, the learned trial court convicted and sentenced the appellant in the terms mentioned earlier, hence instant criminal appeal.

4. Arguments heard. Record perused.

5. A careful examination of the record reveals that the complainant, Muhammad Mehdi Khan (PW.1), through a complaint filed under Sections 3 & 4 of the Act of 2005, levelled serious allegations against Nadeem Liaqat (appellant). Allegedly, on 23.06.2023, the appellant in collusion with certain police officials, forcibly entered into the Property and dispossessed him from the same illegally. According to paragraph 9 of the complaint, the incident occurred "on the same day" at approximately 8:00 p.m., without reiterating the actual date. It was alleged that at that time, the appellant, accompanied by the police officials, launched an aggressive and

unlawful attack on the house situated at Paracha Colony, Street No.17, Shahdra Town, Lahore. The complainant further claimed that during the said incident, the appellant not only unlawfully entered into the premises but also apprehended him and his family members with the assistance of the accompanying police officials. According to the complainant's accusation, he and his family members were wrongfully detained at the police station, and in their absence, valuable household belongings were thrown out into the street in a humiliating and destructive manner. The appellant and his accomplices then allegedly took complete and unlawful possession of the entire double-storey house (the Property). The complainant also stated that his tenant, Shafaqat Ghouri (PW.4), who was in lawful occupation of the upper portion of the Property, was also forcibly dispossessed by the appellant during the course of the incident.

6. It is pertinent to note that in the complaint, in addition to the appellant Nadeem Liaqat, three other individuals, namely Maqsood Ahmad Gujjar, DSP, Yasir Abbas, SHO and Basharat Ali ASI were also nominated as co-accused with active role for their alleged involvement in the commission of the offence. The complainant, Muhammad Mehdi Khan (PW.1), had specifically alleged that these police officials participated in the unlawful dispossession and related acts described in the complaint. However, upon preliminary assessment of the material available on record, the learned trial court chose not to summon the said police officials to face trial and the complaint to their extent was dismissed *vide* order dated 27.09.2024. Their non-summoning was not challenged or questioned by the complainant at any legal forum, either through a revision petition or any other appropriate remedy. Consequently, the

order dated 27.09.2024 attained finality. Furthermore, during the course of cross-examination, Muhammad Mehdi Khan (PW.1) candidly admitted that he did not contest the trial court's decision regarding the exclusion of the aforementioned accused from the proceedings. For ease of reference and to highlight this admission, the relevant excerpt from his cross-examination is reproduced below:-

“.....it is correct that only accused Nadeem Liaqat was summoned by this Court to face the trial, whereas the complaint in hand is dismissed vide order dated 27.09.2024 of this Court to the extent of remaining accused persons; it is correct that I have not assailed the order dated 27.09.2024 of this Court at any forum....”

Thus, the silence of Muhammad Mehdi Khan (PW.1) in not challenging the non-summoning order amounts to implied acceptance of the trial court's decision and undermines the credibility of his earlier allegations against them. It gives rise to a reasonable inference that the complainant may have exaggerated or fabricated portions of his narrative, particularly those involving the police officials. Such conduct adversely affects the overall reliability of the prosecution's case and raises concerns about the truthfulness of the complaint at the time it was filed.

7. It is also significant to mention here that, prior to the commencement of trial proceedings under the Act of 2005, the trial court directed the SHO of the concerned police station to submit a report regarding the matter. In compliance with the court's directive, the SHO submitted the report on 11.07.2024. Upon examining the contents of the police report, it reveals that Muhammad Mehdi Khan (PW.1) had entered into a transaction for the purchase of the disputed property from Mst.Asmat Zahra. The total sale consideration was agreed upon as Rs.60,00,000/-, out of which Rs.26,00,000/- were paid as

earnest money. However, Muhammad Mehdi Khan (PW.1) was unable to pay the remaining balance of Rs.34,00,000/-, which led to the institution of civil suit that is currently pending adjudication before the competent civil court. The police report further affirms that ownership of the Property legally remains with Mst. Asmat Zahra. To verify this, an inquiry was also conducted among local residents of the area, which corroborated the ownership status. Importantly, the report makes it explicitly clear that there has been no unlawful dispossession or illegal occupation, rather, it states that Mst.Asmat Zahra continues to reside in one portion of the house, while the other portion has been rented out to tenants with her consent. These findings, as documented in the police report, directly contradict the version of events presented by the complainant and cast serious doubt on the allegations made in the complaint.

8. This Court is fully mindful of the legislative intent behind the promulgation of the Act of 2005. The primary objective of the Act is to safeguard the rights of lawful owners and lawful occupiers of immovable property from illegal or forcible dispossession by land grabbers and unauthorized individuals. The statute aims to provide an expeditious and effective legal mechanism for the investigation and trial of such offences, thereby ensuring prompt relief to the aggrieved parties. However, when the present case is examined in light of the purpose and spirit of the Act of 2005, certain anomalies become apparent. Muhammad Mehdi Khan (PW.1), the complainant, claims to be the lawful owner of the Property, while Shafqat Ghouri (PW.4) asserts that he was occupying a portion of the same property in the capacity of a tenant. Both witnesses have stated that they were unlawfully dispossessed by

the appellant on 23.06.2023. Despite the gravity of the allegations, the complaint under Sections 3 & 4 of the Act of 2005 was not filed until 19.08.2023 i.e. approximately two months after the alleged incident. During the interregnum neither the complainant nor the purported tenant approached any civil, criminal, or administrative forum to seek immediate redress for the alleged illegal dispossession. This aspect can further be verified from the cross-examination of the complainant, Muhammad Mehdi Khan (PW.1) a relevant portion of which for advantage sake is mentioned hereunder:-

“.....it is correct that I have not filed any application against the accused Nadeem Liaqat for registration of case at any other forum regarding the occurrence;”

Furthermore, during the course of proceedings, learned counsel for the complainant failed to provide any plausible explanation for the inordinate delay in initiating the complaint. The unexplained silence and lack of urgency on the part of the complainant raises serious questions regarding the genuineness of the allegations. In these circumstances, the delay of approximately two months coupled with the absence of any interim legal action, gives rise to a reasonable inference that the complaint may not have been filed promptly in reaction to the alleged incident, but rather was lodged after due deliberation, consultation, and possibly with a view to strengthen a parallel civil claim or to exert pressure on the appellant. Reliance is placed upon the cases reported as Jehangir Khalil, etc. v. Ghulam Farooq etc. [PLJ 2007 Cr.C. (Peshawar) 651] and Messrs Kala Khan Tareen, Coal Company Duki through attorney v. Mehrab Khan and 5 others (2010 YLR 1969).

9. Admittedly the complainant, Muhammad Mehdi Khan (PW.1), did not himself witness the alleged incident of dispossession. While testifying before the trial court, he stated

that the occurrence was witnessed by several individuals, namely Azeem son of Muhammad Aslam, Ghulam Rasool son of Muhammad Boota, Muhammad Akram son of Allah Ditta, Ghulam Abbas son of Annayat Ali, Shafaqat Ghauri son of Ashiq Hussain Ghauri and others. Out of these individuals, only three, namely Ghulam Rasool (PW.2), Muhammad Azeem (PW.3), and Shafaqat Ghauri (PW.4) were produced by the prosecution during trial to support the complainant's version. This Court has meticulously examined the statements of the complainant as well as these three witnesses. Upon close scrutiny, it is evident that there are material contradictions and inconsistencies among their accounts, particularly regarding key aspects of the alleged occurrence. According to the complainant, Muhammad Mehdi Khan (PW.1), the dispossession took place on 23.06.2023, and he claimed that the police officials, acting in collusion with the appellant, Nadeem Liaqat, forcibly removed him from the Property. However, he failed to mention the exact time at which this alleged act took place and during cross-examination stated that *".....it is correct that time of occurrence is not mentioned in my examination in chief...."* Ghulam Rasool (PW.2) an alleged eyewitness, during cross-examination frankly admitted that he did not see the event of dispossession, the exact words uttered by him are as under:-

"I did not see the occurrence which took place in my absence.....the people of the locality informed me regarding the occurrence after about one hour of the occurrence at 10:00 p.m."

The third prosecution eyewitness, Muhammad Azeem (PW.3), provided a significant statement during his cross-examination that bears considerable relevance to the matter at hand. According to Muhammad Azeem (PW.3), at the relevant time he was present at the alleged crime scene and observed that the

police officials were in the process of taking possession of the Property. However, he admitted that all subsequent proceedings took place in his absence, as he had left the scene by then. Given the importance of this particular admission, especially in the context of determining the legality of the possession and the integrity of the proceedings, a relevant excerpt from the cross-examination of Muhammad Azeem (PW.3) is reproduced below for reference:-

“...when I left the place of occurrence, the police officials were taking possession of the disputed property; as I remained present for about 15/20 minutes at the place of occurrence, at that time the police officials were taking possession of the disputed property, the remaining proceedings were completed in my absence.”

The last private witness upon whom the complainant, Muhammad Mehdi Khan (PW.1) placed the greatest reliance was Shafqat Ghouri (PW.4). According to the complainant, Shafqat Ghouri (PW.4), who was his tenant at the relevant time, was dispossessed along with him from the upper portion of the disputed property. However, the complainant's case was ruined during the cross-examination of Shafqat Ghouri (PW.4). For the sake of clarity, relevant extract from the cross-examination of Shafqat Ghouri (PW.4) is reproduced hereunder:-

“....two police officials/constables directed me on 23.06.2023 to vacate the disputed property; when the police officials directed me to vacate the disputed property, I started to vacate the same at my own; the upper portion of the disputed property was vacated by me in about 02 hours;.....”

It is worth noting that Shafqat Ghouri (PW.4) had previously got recorded his statement as CW.2, during which he admitted that he himself had voluntarily removed and shifted his belongings from the Property. This statement, being rather cursory and devoid of any specific allegations of unlawful

dispossession, fails to substantiate the complainant's version. On the contrary, it suggests that no forceful dispossession took place and that the departure from the premises was carried out voluntarily. The relevant portion of statement of Shafqat Ghouri recorded as CW.2 being of paramount importance is mentioned hereunder:-

“I was tenant of complainant Muhammad Mehdi Khan and was residing in the disputed house. Prior to this occurrence was week ago police took me and the complainant Muhammad Mehdi Khan to the police station and carried out proceedings u/s 107 & 151 Cr.P.C. Police did not touch my luggage however police warned me to take out my luggage from my house. Whereupon I shifted my luggage from the house.”

Last but not least, this Court has observed a grave procedural lapse in the conduct of the trial. Although the entire proceedings were initiated on the basis of a complaint filed under the provisions of the Act of 2005, notably, the said complaint was never exhibited during the course of the trial. If this Court excludes that un-exhibited complaint from consideration in accordance with settled principles of appraising the evidence, the entire foundation of the prosecution's case collapses. It is a well-established principle of law, requiring no elaborate clarification that any document not formally exhibited during trial cannot be treated as part of the evidentiary record or read in evidence. Reference is made to the case reported as Mazhar Iqbal v. The State and another (2022 MLD 752) wherein learned Islamabad High Court held as under:-

“It is a well settled law that document which has not been exhibited, cannot be read in evidence.”

10. In light of the foregoing discussion and upon a careful appraisal of the entire evidence on record, I am firmly of the

considered opinion that the complainant, Muhammad Mehdi Khan (PW.1), has manifestly failed to establish his case within the parameters and protective ambit of the Act of 2005. The evidence tendered by him, despite the production of three private witnesses who purportedly had witnessed the alleged forcible dispossession of the complainant from the Property, deposed otherwise during cross-examination making the case of the complainant, Muhammad Mehdi Khan (PW.1) as of no evidence. These deficiencies in the prosecution's case raise serious and sufficient doubts regarding the veracity and reliability of the allegations. In these circumstances, the prosecution has not discharged the burden of proof beyond a reasonable doubt. Thus, the principle of benefit of doubt, which is a cornerstone of criminal jurisprudence, must be extended in favour of the appellant. Accordingly, the evidence presented cannot be deemed sufficient or credible to sustain conviction under the Act of 2005. Therefore, the instant criminal appeal is hereby allowed. The conviction and sentence awarded to Nadeem Liaqat (appellant), are set aside and as a consequence thereof he is acquitted of the charges. The appellant is presently on bail, his bail bonds and sureties are accordingly discharged.

(ABHER GUL KHAN)
JUDGE

APPROVED FOR REPORTING

JUDGE

The judgment was announced
on 23.07.2025, dictated,
Prepared and signed
on 31.07.2025
Najum*